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Case Number: 25STCV15351 Hearing Date: July 13, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 13, 2026

Case Name: Green Farms California LLC v.

Ziff

Case

No.: 25STCV15351

Matter: Demurrer with Motion to Strike

Moving

Party: Defendant Richard Ziff

Responding Party: Plaintiff Green Farms California LLC

Tentative

Ruling: Defendant Richard Ziff's

demurrer is sustained.

Defendant

Richard Ziff's motion to strike is granted in part and denied in part.

Plaintiff

Green Farms California LLC, doing business as Worldwide Produce ("Plaintiff"),

filed this action against Defendant Richard Ziff ("Defendant") and Does 1 through 10. The Second Amended Complaint ("SAC") alleges four causes of action against Defendant for: (1) misappropriation of trade secrets; (2) unfair competition; (3) breach of contract; and (4) intentional interference with contractual relations.

Defendant

demurs to Plaintiff's SAC for failure to allege sufficient facts and on the basis of uncertainty. Defendant also moves to strike portions of Plaintiff's SAC. Plaintiff opposes.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court " 'treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . ' " (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

"The

court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) "Immaterial" or "irrelevant" matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10,

subds. (b)(1)-(3).)

Request for Judicial Notice

Plaintiff

requests that the Court take judicial notice of: (1) Defendant's demurrer to Plaintiff's First Amended Complaint ("FAC"); (2) Plaintiff's opposition to Defendant's demurrer to Plaintiff's FAC; and (3) the November 13, 2025, Minute Order.

The Court

grants Plaintiff's requests for all three court records pursuant to Evidence Code section 452, subdivision (d).

Defendant requests

that the Court take judicial notice of: (1) Plaintiff's Complaint; (2) Plaintiff's FAC; and (3) the January 14, 2026, Minute Order.

The Court

grants Defendant's requests for all three court records pursuant to Evidence Code section 452, subdivision (d).

Analysis

Meet and

Confer

Pursuant to Code of Civil Procedure

section 430.41, "a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . ."

(Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. §435.5, subd. (a).)

Defendant

declares that on April 30, 2026, the parties met and conferred by telephone. (DeClercq Decl., ¶ 2.) Thus, the parties fulfilled their meet-and-confer obligations.

Demurrer

Defendant

demurs to Plaintiff's SAC as to each cause of action on the basis of uncertainty and for failure to allege sufficient facts. In reply, Defendant withdraws his demurrer to Plaintiff's third cause of action.

Uncertainty

Per Code of Civil Procedure section

430.10, subdivision (f), a demurrer must be sustained if a pleading is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) The term uncertain means "ambiguous and unintelligible." (Ibid.) However, demurrers for uncertainty will not be sustained unless "the pleading is so incomprehensi[ve] that a defendant could not reasonably respond." (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, quoting Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn.3 (A.J. Fistes Corp.).)

In looking

at the SAC as a whole, it is not incomprehensible to sustain the demurrer on this basis. The SAC alleges sufficient facts for Defendant to respond.

Thus, the

Court overrules the demurrer on this basis.

Failure to

Allege Sufficient Facts

First Cause of Action—Misappropriation
of Trade Secrets

"To prove

misappropriation under the UTSA, a plaintiff must establish that the defendant improperly acquired or used trade secret information. ([Citation.]) The plaintiff must also show it made reasonable efforts to maintain the confidentiality of the purported trade secret." (Hooked Media Group, Inc. v. Apple Inc. (2020) 55 Cal.App.5th 323, 331–332, publication ordered (Sept. 30, 2020) (citation omitted).) "The California Uniform Trade Secrets Act requires an "[a]ctual or threatened misappropriation" ([Citation.]) Mere possession of trade secrets by a departing employee is not enough. . . ." (FLIR Systems, Inc. v. Parrish (2009) 174 Cal.App.4th 1270, 1279 (citation

omitted.))

Here, the

SAC does not allege sufficient facts to allege a viable cause of action. First, Plaintiff alleges in a conclusory manner that Defendant “improperly accessed and downloaded Company confidential information.” (SAC, ¶ 13.) Furthermore, the SAC devotes considerable detail to what a person like Defendant could do with the “confidential and proprietary” information he allegedly acquired, but not to what Defendant actually did. (SAC, ¶ 36.) Plaintiff contends that by adding paragraph 38, it has cured the defects in its SAC. However, the Court is not persuaded. First, Plaintiff provides no legal argument to support his claim. Second, the allegation concerns the harm Plaintiff estimates it will suffer due to the loss of two customers. (See SAC, ¶ 38.) However, Plaintiff does not allege with particularity what trade secret Defendant misappropriated. (See *Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 43–44.)

Thus, the

Court sustains the demurrer as to the first cause of action.

Fourth Cause of

Action—Intentional Interference with Contractual Relation

Defendant

contends that the second and fourth causes of action are preempted by the California Uniform Trade Secrets Act (“CUTSA”).

The court

in *K.C. Multimedia* interpreted the CUTSA as,

The California Uniform Trade Secrets

Act (CUTSA) is codified in sections 3426 through 3426.11 of the Civil Code. ([Citations].)

CUTSA has been characterized as having a “comprehensive structure and breadth...” ([Citation].) “Here, the eleven provisions of the UTSA set forth: the definition of ‘misappropriation’ and ‘trade secret,’ injunctive relief for actual or threatened misappropriation, damages, attorney fees, methods for preserving the secrecy of trade secrets, the limitations period, the effect of the title on other statutes or remedies, statutory construction, severability, the application of title to acts occurring prior to the statutory date, and the application of official proceedings privilege to disclosure of trade secret

information.” ([Citation.]) That breadth suggests a legislative intent to preempt the common law. ([Citation.]) At least as to common law trade secret misappropriation claims, “UTSA occupies the field in California.” ([Citation.]) CUTSA includes a specific provision concerning preemption. That provision, section 3426.7, reads in pertinent part as follows: “(a) Except as otherwise expressly provided, this title does not supersede any statute relating to misappropriation of a trade secret, or any statute otherwise regulating trade secrets. [¶] (b) This title does not affect (1) contractual remedies, whether or not based upon misappropriation of a trade secret, (2) other civil remedies that are not based upon misappropriation of a trade secret, or (3) criminal remedies, whether or not based upon misappropriation of a trade secret.” Section 3426.7 thus “expressly allows contractual and criminal remedies, whether or not based on trade secret misappropriation.” ([Citation.]) “At the same time, § 3426.7 implicitly preempts alternative civil remedies based on trade secret misappropriation.” (Ibid.)

(K.C. Multimedia, Inc. v. Bank of America Technology & Operations, Inc. (2009) 171 Cal.App.4th 939, 954 (emphasis added) (K.C. Multimedia).)

“[S]ection 3426.7, subdivision (b), preempts common law claims that are “based on the same nucleus of facts as the misappropriation of trade secrets claim for relief.” [Citation.] Depending on the particular facts pleaded, the statute can operate to preempt the specific common claims asserted here: breach of confidence, interference with contract, and unfair competition.” (Id. at p. 958–959.)

“The elements which a plaintiff must plead to state the cause of action for intentional interference with contractual relations are (1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.” (Pacific Gas & Electric Co. v. Bear Stearns & Co. (1990) 50 Cal.3d 1118, 1125.) “If the means of interference involve no more than recognized trade practices such as advertising, solicitation, or reduction of prices a plaintiff's loss as a result of the competition is not actionable.” (Charles C. Chapman Building Co. v. California Mart (1969) 2 Cal.App.3d 846, 855 (Charles).)

Based on

the facts alleged in the SAC, it appears that Plaintiff's fourth cause of action is based on the "same nucleus of facts as the misappropriation of trade secrets claim for relief." (K.C. Multimedia, *supra*, 171 Cal.App.4th at p. 954.) Because the first cause of action has been sustained in this demurrer, the Court is unable to affirmatively determine whether preemption applies.

As to the

viability of the fourth cause of action, it also falls short of surviving demurrer. Plaintiff alleges that it had "valid and enforceable contracts" with customers. (SAC, ¶ 68.) Plaintiff alleges that Defendant contracted with the third parties following his departure to do business with his new employer. (*Id.* as ¶ 69.) However, this allegation is more akin to solicitation than to intentional acts aimed at disrupting the contractual relationship. (See Charles, *supra*, 2 Cal.App.3d at p. 855.) Plaintiff provides no legal basis to challenge Defendant's demurrer. Moreover, Plaintiff alleges in a conclusory manner that "with the intent of disrupting Plaintiff's aforementioned contractual relationships and discouraging those contractual relationships from continuing to do business with Plaintiff." (SAC, ¶ 70.)

Thus, the

demurrer is sustained as to the fourth cause of action.

Second

Cause of Action—Unfair Competition

The UCL

defines unfair competition as "any unlawful, unfair, or fraudulent business act or practice." (Bus. & Prof. Code § 17200.) "A plaintiff alleging unfair business practices under these statutes must state with reasonable particularity the facts supporting the statutory elements of the violation." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 618.)

To state a

claim under the "unfair" prong, the allegation must show conduct that "offends an established public policy or...is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers." (People v. Vasa Blanca Convalescent Homes, Inc. (1984) 159 Cal.App.3d 509, 530.)

Additionally,

“[a]n ‘unlawful’ business practice or act within the meaning of the UCL ‘is an act or practice, committed pursuant to business activity, that is at the same time forbidden by law. [Citation.]’” (Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co. (1999) 20 Cal.4th 163, 180.) Further, “[b]y proscribing ‘any unlawful’ business practice, ‘section 17200 “borrows” violations of other laws and treats them as unlawful practices’ that the unfair competition law makes independently actionable. [Citation.]” (Ibid.) “[S]ection 17200 “borrows” violations of other laws and treats them as unlawful practices’ that the unfair competition law makes independently actionable.” (Ibid.)

Similar to the demurrer to the FAC, the claim is derivative of the other causes of action in the SAC. (See November 13, 2025, Minute Order; SAC, ¶ 58-60.) Here, only the breach-of-contract cause of action survives. “[A] breach of contract may ... form the predicate for Section 17200 claims, provided it also constitutes conduct that is ‘unlawful, or unfair, or fraudulent.’ ” (Puentes v. Wells Fargo Home Mortgage, Inc. (2008) 160 Cal.App.4th 638, 645.) However, the failure to comply with the confidentiality provision of the Agreement is not conduct that is “unlawful, or unfair, or fraudulent.” Thus, the demurrer to this cause of action is sustained.

Thus, the demurrer to the second cause of action is sustained.

Motion
to Strike

Defendant
moves to strike the SAC: (1) ¶ 79; and (2) prayers for relief 8 and 10.

Punitive Damages

A plaintiff can recover punitive damages in tort cases where “the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Punitive damages thus require more than the mere commission of a tort. (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166 (Grieves).) “In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

Here,

the opposition confirms that Plaintiff's demand for punitive damages is dependent on its fourth cause of action. The Court has sustained the demurrer as to the fourth cause of action; thus, there is no basis in the SAC for punitive damages.

Thus,

the Court grants Defendant's motion to strike punitive damages.

Attorney's Fees

The Court

denies the motion to strike as to prayer for relief ¶ 10, because Defendant makes no argument to support his motion to strike this portion of the SAC.

Thus, the

motion to strike is denied as to prayer for relief ¶ 10.

Leave to Amend

Leave to amend must be allowed

where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that the pleading can be successfully amended. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The Court will hear argument

whether leave to amend should be granted.

Conclusion

Defendant's

demurrer is sustained as to the first, second, and fourth causes of action.

Defendant's

demurrer to the third cause of action is rescinded.

Defendant's motion

to strike punitive damages is granted.

Defendant's motion

to strike attorney's fees is denied.